

10.	25CV0195	JODY GROVES VS. DIANE GEE ET AL
DEMURRER/REQUEST FOR JUDICIAL NOTICE		

REQUEST FOR JUDICIAL NOTICE:

Defendant requests the court take Judicial notice of 2 documents: the deed of trust and the release of mechanics lien. The court grants the requests.

DEMURRER:

Standard of Review

A demurrer tests the sufficiency of a complaint by raising questions of law. (*Rader Co. v. Stone* (1986) 178 Cal.App.3d 10, 20, 223 Cal.Rptr. 806.) In determining the merits of a demurrer, all material facts pleaded in the complaint and those that arise by reasonable implication, but not conclusions of fact or law, are deemed admitted by the demurring party. (*Moore v. Conliffe, supra*, 7 Cal.4th at p. 638, 29 Cal.Rptr.2d 152, 871 P.2d 204; *Interinsurance Exchange v. Narula, supra*, 33 Cal.App.4th at p. 1143, 39 Cal.Rptr.2d 752.) The complaint must be construed liberally by drawing reasonable inferences from the facts pleaded. (*Flynn v. Higham* (1983) 149 Cal.App.3d 677, 679, 197 Cal.Rptr. 145.)

In addition to the facts actually pleaded, the court considers facts of which it may or must take judicial notice. *Cantu v. Resolution Trust Corp.*, 4 Cal.App.4th 857, 877 (1992).

A demurrer raises only issues of law, not fact, regarding the form and content of the pleadings of the opposing party. Cal. Civ. Pro. §§ 422.10 and 589. It is not the function of the demurrer to challenge the truthfulness of the complaint, instead, for the purposes of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts in the pleading but not contentions, deductions or conclusions of fact or law. *Aubry v. Tri-City Hosp. Dist.*, 2 Cal. 4th 962, 966-967 (1992); *Serrano v. Priest*, 5 Cal. 3d 584 (1971); *Adelman v. Associated Int'l Ins. Co.*, 90 Cal. App. 4th 352, 359 (2001). A demurrer can only challenge defects that appear on the face of the pleading and other matters that are judicially noticeable, the challenging party cannot make allegations of fact to the contrary. *Blank v. Kirwan*, 39 Cal. 3d 311, 318 (1985); *Donabedian v. Mercury Ins. Co.*, 116 Cal. App. 4th 968 (2004); *Harboring Villas Homeowners Assn. v. Sup. Ct.*, 63 Cal. App. 4th 426 (1998). For that reason, "[t]he hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable." *Fremont Indemnity Co. v. Fremont General Corp.*, 148 Cal. App. 4th 97, 114 (2007).

Failure to plead the ultimate facts supporting a cause of action subjects the complaint to a demurrer. Cal. Civ. Pro. § 430.10(e); *Berger v. Cal. Ins. Guar. Ass'n*, 128 Cal. App. 4th 989, 1006 (2005). "To determine whether a cause of action is stated, the appropriate question is whether, upon a consideration of all the facts alleged, it appears that the plaintiff is entitled to any judicial relief against the defendant, notwithstanding that the facts may not be clearly stated, or may be

intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged.” *Elliot v. City of Pacific Grove*, 54 Cal. App. 3d 53, 56. Otherwise stated, the demurrer is to be overruled if the allegations of the complaint are sufficient to state a cause of action under any legal theory. *Brousseau v. Jarrett*, 73 Cal. App. 3d 864 (1977); see also *Nguyen v. Scott*, 206 Cal. App. 3d 725 (1988). ‘

Plaintiff has not responded to Umpqua Bank’s demurrer motion.

Defendant maintains there is not a cause of action which states a claim as Defendant is not a party to any contract nor has been assigned any rights which create a duty to Plaintiff for purpose of any breach of contract or quantum meruit claim. The court agrees. Defendant has no rights nor has entered into any agreements with Plaintiff. Defendant’s agreement with the homeowners’ functions to secure the loan made to the homeowners for the construction project. It does not provide any rights or obligations to Defendant as it relates to Plaintiff. For those reasons the court will sustain the demurrer as to cause of action 1 and 2.

The cause of action for foreclosure of mechanics lien also fails. Plaintiff has provided no facts to dispute the foreclosure filing is barred. Additionally, Plaintiff having released the lien has the effect of demonstrating the lien is not enforceable and cannot now be foreclosed on.

As Plaintiff has not responded to the demurrer and for the reasons stated, the court will sustain the demurrer without leave to amend.

TENTATIVE RULING #10: DEMURRER IS SUSTAINED WITHOUT LEAVE TO AMANED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG

May 29, 2026
Dept. 9
Tentative Rulings

**CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED.
PARTIES MAY PERSONALLY APPEAR AT THE HEARING.**